

## 25STCV30056 25STCV30056

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-08-05

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Case Number: 25STCV30056 Hearing Date: August 5, 2026 Dept: 732

Christopher Nelson Berndt v. Mary L. Berndt., et al.

Wednesday, August 5, 2026

CASE NUMBER: 25STCV30056

UNOPPOSED

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Plaintiff

Christopher Nelson Berndt's Motion for Leave to File First Amended Complaint

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Facts: This is an

action for breach of fiduciary duty. The Complaint alleges as follows.

Plaintiff Christopher Nelson Berndt is the beneficiary of a trust and entitled to reside in trust property. (Complaint

9.) Defendant Mary L. Berndt is the trustee of the trust and has failed to adequately account for trust assets or to maintain the property for Plaintiff's use. (Complaint ¶¶ 10–11.)

Procedural History: Plaintiff filed the Complaint on October 14, 2025, alleging four causes of action:

1.

Breach of Fiduciary Duty

2.

Breach of Trust

3.

Declaratory Relief

4.

Accounting

This

court on April 9, 2026, denied nonparty Cherilin Lee Berndt's motion for judgment on the pleadings.

On

May 19, 2026, this court denied Plaintiff's motion to consolidate.

Plaintiff

filed the present motion for leave to amend on May 19, 2026. No opposition has been filed.

Analysis:

I.

MOTION FOR LEAVE TO  
AMEND

Code Civ. Proc.

section 473 subd. (a)(1) states that:

The

court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.

“The trial court has discretion to permit or deny the amendment of the complaint, but instances justifying the court’s denial of leave to amend are rare.” (Armenta ex rel. City of Burbank v. Mueller Co. (2006) 142 Cal.App.4th 636, 642.)

“Although courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [Citations], this policy should be applied only ‘[w]here no prejudice is shown to the adverse party . . .’ [Citation.] A different result is indicated ‘[w]here inexcusable delay and probable prejudice to the opposing party’ is shown. [Citation.]” (Magpali v. Farmers Group, Inc. (1996) 48 Cal.App.4th 471, 487.)

Pursuant to California Rule of Court Rule 3.1324, “[a] motion to amend a pleading before trial must:

- (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;
- (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and
- (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.”

Plaintiff Christopher Nelson Berndt (“Plaintiff”) seeks leave to file a first amended complaint (“FAC”) replacing Defendant Mary L. Berndt with Cherilin Berndt as the nominal trustee of the Berndt Family Trust dated October 25, 2001, and adding new causes of action for quiet title, fraud, and elder abuse, seeking to establish Plaintiff’s interest in certain real property and to establish that Defendant Cherilin Berndt is not trustee of the relevant trust. (Motion Exh. B.)

Leave is proper here. No defendant has yet appeared in this action, and Plaintiff may amend the complaint once as of right under Code of Civil Procedure § 472, subd. (a). Although Cherilin Berndt filed an answer to the original complaint on February 17, 2026, said complaint did not name Cherilin Berndt as defendant, and as the court noted in its order denying her motion for judgment on the pleadings on April 9, 2026, she is not a party to this action, and will not be made one until the FAC is filed. Thus amendment may be had as of right under

section 472, as no functional “answer, demurrer, or motion to strike” has been filed. (Code Civ. Proc. § 472, subd. (a).)

The  
motion is therefore GRANTED. Plaintiff shall file the first amended complaint within 5 days of this order.

Superior Court of California

County of Los Angeles

Department 732

CHRISTOPHER NELSON BERNDT.;

Plaintiff,

vs.

MARY L. BERNDT AS  
TRUSTEE OF THE BERNDT FAMILY TRUST DATED OCTOBER 25, 2001.. et al.;

Defendants.

Case No.:  
25STCV30056

Hearing Date: August 5, 2026

[TENTATIVE] RULING RE:

Plaintiff Christopher Nelson Berndt's Motion for Leave to File  
First Amended Complaint i.

Plaintiff Christopher Nelson Berndt's  
Motion for Leave to File First Amended Complaint is GRANTED. The  
amended complaint shall be filed within 5 days of this order.

Plaintiff  
to provide notice.

Dated: August 5, 2026

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Hon.

Richard S. Kemalyan

Judge

of the Superior Court